

a law firm. They often use the term “litigation firm” and tell you that they are in the process of drawing up the paperwork for a lawsuit against you on such-and-such debt. They are now giving you a “courtesy call” and a chance to pay it off or work out a settlement deal. Of course, if you don’t work out a deal or agree to send in your hard earned cash, they say that you will be slapped with a lawsuit.

If they are pretending to be an attorney, you can pretend to be Thomas Jefferson, cool and unruffled. Let them know that you’re onto them. The person on the other end of the phone is not used to people talking back. They are used to being the intimidator, and they expect you to be quaking in your boots. But now that you know what the score is, you won’t be.

“I Don’t Owe”

If you know that it is an old debt and the statute has expired, remember what I just told you a few paragraphs ago: You don’t owe them any explanation. You don’t owe them one thin dime. You don’t owe them anything.

This is your movie, and you have one line: “That debt is not collectible.” However dramatic you want to be as you slam down the phone is up to you.

These guys bluff better than the poker players in Vegas, and will use every intimidation trick in the book to try to collect as much as they can out of you. They want to get you to send them as much money as you can, as quickly as you can. That is their job and these “professionals” take a twisted pride in doing their job well. They will say anything because they know they will probably get away with it. Most people simply don’t know about debt collection laws.

Even for those of us who do know the law, it’s very difficult to go after them when they do cross the line, and they know it. There is a ridiculous loophole in our current consumer law that allows these bozo collection agencies a “get out of jail free” card, if they do get tangled up in a case against them. They simply shut down their current business and start a new one. They may change their name, but they do not change their ways. They go on their merry way, operating in the